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IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT
IN AND FOR THE COUNTY OF UTAH, STATE OF UTAH

STATE OF UTAH, Plaintiff, vs. TYLER JAMES ROBINSON, Defendant.	DEFENDANT TYLER JAMES ROBINSON'S MOTION FOR AN ORDER TO SHOW CAUSE FOR CONTEMPT OF COURT BY UTAH COUNTY ATTORNEY JEFFREY S. GRAY AND UTAH DEPUTY COUNTY ATTORNEY CHRIS BALLARD, AND FOR AN ORDER COMPELLING THE UTAH COUNTY ATTORNEY'S OFFICE TO PRODUCE DISCOVERY RELATED TO THE CONTEMPTIOUS CONDUCT; MEMORANDUM OF POINTS AND AUTHORITIES AND AFFIDAVIT IN SUPPORT THEREOF Case No. 251403576 Honorable Tony F. Graf, Jr.
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MOTION AND INTRODUCTION

Defendant, Tyler James Robinson, by and through his counsel of record, hereby moves
this Honorable Court to issue an Order directing Utah County Attorney Jeffrey S. Gray and

Deputy Utah County Attorney Chris Ballard to show cause why they should not be held in *civil* contempt pursuant to Utah Code §§ 78B-6-301 et seq. (the “Contempt Statute”) and long-standing common law principles for violation of this Court’s *Pre-Trial and Trial Publicity Order* dated September 16, 2025, as amended on December 15, 2025. *See* Exhibit A (Docs 23 & 242).

Mr. Robinson also moves this Court to compel the Utah County Attorney’s Office, pursuant to Rule 16(a)(4) of the Utah Rules of Criminal Procedure and this Court’s inherent supervisory powers, to produce documents and information related to that contemptuous conduct, which Mr. Robinson has already requested by way of a request for discovery on April 3, 2026 (Exhibit B), and which the Utah County Attorney’s Office thereafter declined to produce. *See* Doc. 495 (Exhibit C).

As explained in more detail below, on March 27, 2026, Mr. Robinson timely filed his *Motion to Vacate or Continue Preliminary Hearing Pending Discovery to Permit Constitutionally Adequate And Reasonable Time For Preparation*. *See* Doc. 466.¹ Just days later, the Utah County Attorney’s Office, under the leadership of Mr. Gray but using Mr. Ballard as its oracle, deliberately made statements to numerous media entities, both in writing and through interviews, which clearly violate the *Pre-Trial Publicity Order*, as well as Rule 3.6 of the Utah Rules of Professional Conduct. *See* Ex. A. These public statements concern both the contents of expert reports and the Utah County Attorney’s Office’s opinion as to the guilt of Mr. Robinson.

In light of the refusal of the Utah County Attorney’s Office to voluntarily disclose the documents and information requested by Mr. Robinson which relate directly to the contemptuous conduct, Mr. Robinson reserves identification of the precise remedies he seeks until the

¹ Documents contained in the existing Court record are referenced by docket number unless attached as an exhibit to this Motion.

conclusion of the proposed “show cause” hearing that is required by Utah Code § 78B-6-309. It is well established under Utah law, however, that the sanctions which the Court may impose after a finding of civil contempt include, *inter alia*, the remedial purpose of “compensating an aggrieved party for injuries resulting from the failure to comply with an order.” *Von Hake v. Thomas*, 759 P.2d 1162, 1168 (1988).

This motion is based upon this Court’s *Pre-Trial Publicity Order*, Rule 3.6 of the Utah Rules of Professional Conduct, Utah Code §§ 78B-6-301 et seq. (the “Contempt Statute”), Rule 16 of the Utah Rules of Criminal Procedure, article I, sections 7 and 12 of the Utah Constitution, the Fifth, Sixth and Eighth Amendments to the United States Constitution, and the other authorities cited below.

RELEVANT FACTS²

The Pre-Trial and Trial Publicity Order

On September 22, 2025, the Court issued an order governing the conduct of the lawyers participating in this criminal case. The order is titled ***Protection Order Re: Pre-Trial and Trial Publicity*** (“*Pretrial Publicity Order*”). See Ex. A. The *Pretrial Publicity Order* directs that the lawyers “who have participated, who are now participating, or who will yet participate in the investigation or litigation of this case in any way” must “strictly comply” with the provisions of Utah Rule of Professional Conduct 3.6. See *id.* The Order cites language from Rule 3.6 that prohibits a lawyer from making “an extrajudicial statement that the lawyer knows or reasonably should know will be disseminated by means of public communication and will have a substantial likelihood of materially prejudicing an adjudicate proceeding in the matter.” See *id.*

² This section of this motion is supported by the concurrently filed *Declaration of Counsel in Support of Motion for Issuance of Order to Show Cause* and the attachments thereto, hereby incorporated by reference.

Comment [5] of Rule 3.6 describes certain subject matter “that are more likely than not have a material prejudicial effect on a proceeding, particularly when they refer to a civil matter triable to a jury, a criminal matter or any other proceeding that could result in incarceration.”

These include:

- a. “the performance or results of any examination or test . . . or the identify or nature of physical evidence expected to be presented;”
- b. “any opinion as to the guilt or innocence of a defendant or suspect in a criminal case or proceeding that could result in incarceration;”
- c. “the fact that a defendant has been charged with a crime, unless there is included therein a statement explaining that the charge is merely an accusation and that the defendant is presumed innocent until and unless proven guilty[.]”

The *Pretrial Publicity Order* also incorporates language from Utah Rule of Professional Conduct 3.8 (Special Responsibilities of a Prosecutor) requiring lawyers to not “intentionally, knowingly, or recklessly permit a witness, investigator, consultant, staff member, or other member of the prosecution or defense team to make extrajudicial statements which, if made by the lawyer, would violate Rule 3.6.”

On November 6, 2025, the State filed a *Motion to Amend or Clarify Court’s Pre-Trial and Trial Publicity Order* (Dkt. #23), seeking modification of the Court’s *Pretrial Publicity Order*. See Doc. 167. The motion was signed by Christopher Ballard. *Id.* at 9. The Court granted the State’s motion to clarify and clarified the duties of counsel in informing witnesses that they should not make statements prohibited by Rule 3.6. See Ex. A.

The Utah County Attorney’s Office is fully aware of their ethical obligations under Utah Rules of Professional Conduct 3.6 and 3.8 as demonstrated by the emails sent by members of the prosecution team to law enforcement and other agencies before charges were filed against Mr. Robinson. See Doc. 358; Counsel Dec. Attachment A. In these letters to law enforcement and

other agencies, UCAO emphasized, “DO NOT ... MAKE COMMENTS ON HIS CHARACTER OR YOUR BELIEF OF HIS GUILT.” These letters also list the categories of prohibited statements under Rule 3.6, Comment [5] and include as a consideration, Mr. Robinson’s right to a fair trial. *Id.*

Mr. Robinson’s Motion to Vacate or Continue the Preliminary Hearing

On March 27, 2026, Mr. Robinson filed a motion to vacate or continue the preliminary hearing. In detailing why good cause exists to continue or vacate the preliminary hearing, Mr. Robinson referenced forensic testing by the ATF that he may seek introduce at the preliminary hearing. The motion was filed as a public document. Mr. Robinson did not request that the motion to continue be filed privately in light of this *Court’s Rulings and Orders on Classification and Closure Motions*. See Doc. 460. Therein, the Court denied Mr. Robinson’s earlier motion to classify as private a related motion filed January 9, 2026. The ATF report at issue in Mr. Robinson’s January 9, 2026 motion is the same report cited in his recent motion to continue. The defense’s earlier and continued but opposed and rejected concern with filing this inconclusive report publicly was that doing so would be, in effect, an improper end run around Rule 3.6.

Obviously, neither the State nor this Court agreed with that concern. The State objected to classifying the January 9, 2026 motion and evidence as private. Doc. This was despite the State’s earlier email avoiding a public filing regarding the same evidence, for the same reason. See Counsel Declaration, Attachment B.

Facts Supporting Mr. Gray and Mr. Ballard's Contemptuous Violation of the Pretrial Publicity Order

On March 31, 2026, the online news entity TMZ published an article entitled, "Charlie Kirk Murder Suspect PROSECUTORS SLAM HIS CLAIMS Bullet Doesn't Match." The article states:

Attorney Christopher Ballard tells us, "Generally when a bullet fragment analysis comes back as inconclusive, that means the fragment did not contain enough detail for the examiner to say one way or the other. There's just not enough there to determine whether the bullet was fired by a particular firearm. We have ample evidence to demonstrate beyond a reasonable doubt that Tyler Robinson committed this murder and we will present some of that evidence at the upcoming preliminary hearing – and then we will present all of that evidence at the trial."

<https://www.tMZ.com/2026/03/31/tyler-robinson-prosecutor-says-bullet-results-were-inconclusive/>. The article further quotes Mr. Ballard, "He told us, 'Can't speak about specific evidence, but the evidence that we detailed in the charging document is a general summary of the evidence that shows Tyler Robinson committed this crime.'" Finally, TMZ states, "Ballard added, 'He is presumed innocent. The ultimate decision will be up to the jury – we believe we will be able to overcome his presumption of innocence.'"

Also on March 31, 2026, USA Today reported communications with Christopher Ballard, writing:

When asked about the defense's characterization of the ATF report, Christopher D. Ballard, a spokesperson for the Utah County Attorney's Office, told USA TODAY ethical rules prohibit him from speaking publicly about forensic testing and test results.

"But I can say generally that when the results of a bullet fragment analysis come back as inconclusive, that means only that the fragment did not contain enough detail for the examiner to determine whether the characteristics on the fragment were consistent with having been fired by a particular firearm," Ballard said.

Ballard confirmed the FBI and ATF are adding information to the initial reports, which prosecutors expect will include data supporting the initial conclusions. “As soon as the State receives those supplemental reports, we will provide them to the defense,” he said.

N’dea Yancey-Bragg, *Does the bullet match? Key issue emerges in Charlie Kirk murder case*, USA TODAY (March 31, 2026, 6:05 p.m. ET),

<https://www.usatoday.com/story/news/nation/2026/03/31/tyler-robinson-link-charlie-kirk-bullet-match/89399761007/>.

On April 1, 2026, Mr. Ballard also appeared on Fox News where he attempted to explain away the results of forensic testing on a bullet fragment. *See Fox And Friends, Kirk murder suspect’s lawyers seek delay amid questions with ballistics*, FOX NEWS (April 1, 2026), <https://www.foxnews.com/video/6392351409112>. The description of this video reads, “Christopher Ballard, Utah County Prosecutor, and Bernard Zappor, retired ATF agent, debunk these claims, stating bullet fragments were too damaged for conclusive analysis, but shell casings matched.” *Id.*

On April 2, 2026, Politifact published an article online quoting from an email *sent by Mr. Ballard* to the media entity:

“When the results of a bullet fragment analysis come back as ‘inconclusive,’ that does not mean that the rifle did not fire the bullet,” Christopher Ballard, a spokesperson for the Utah Country [sic] Attorney’s Office and part of the prosecution team, wrote in an email to PolitiFact. “There just aren’t enough marks on the fragment to make a conclusion one way or the other as to whether the bullet fragment was fired by the particular rifle.

Loreben Tuquero, *Does a bullet analysis clear Charlie Kirk’s suspected killer? What an ‘inconclusive’ result means*, POLITIFACT (April 2, 2026),

<https://www.politifact.com/article/2026/apr/02/charlie-kirk-tyler-robinson-bullet-inconclusive/>.

The Politifact article cites the following as a source for the article: “Email exchange, Christopher Ballard, Spokesperson for the Utah County Attorney’s Office, April 1, 2026.” *Id.*

Mr. Ballard’s statements to media outlets spread to other media outlets. Without any inclusion of any statement regarding Mr. Robinson’s presumption of innocence, The Standard wrote:

State prosecutor Christopher Ballard told TMZ that the apparent evidence gap was not an issue.

“Generally, when a bullet fragment analysis comes back as inconclusive, that means the fragment did not contain enough detail for the examiner to say one way or the other,” he told the outlet.

“We have ample evidence to demonstrate beyond a reasonable doubt that Tyler Robinson committed this murder and we will present some of that evidence at the upcoming preliminary hearing – and then we will present all of that evidence at the trial.”

Charlie Kirk murder: suspect’s lawyer says uncertainty on bullet, THE STANDARD (April 1, 2026, 11:43 HKT), <https://www.thestandard.com.hk/world/article/328258/Charlie-Kirk-murder-suspects-lawyer-says-uncertainty-on-bullet>.

Immediately upon discovering that the Utah County Attorney’s Office has been communicating about the evidence in this case and its opinions about Mr. Robinson’s guilt with the media, Mr. Robinson requested discovery of documents and information directly related to these public statements and how the decision was made to engage in this contemptuous public relations campaign (*Defendant Tyler James Robinson’s Request for Discovery*). See Doc. 474 (Exhibit B). The UCAO objected to the request for discovery on April 10, 2026. See Doc. 495 (Exhibit C).

It is clear that the UCAO is making public statements about the forensic testing conducted in the case. It is also beyond dispute that the UCAO is offering its opinion as to Mr.

Robinson’s guilt. Declaring that the State has “ample evidence to demonstrate beyond a reasonable doubt that Tyler Robinson committed this murder” is the functional equivalent of stating that Mr. Robinson is “guilty.”

MEMORANDUM

I. UTAH LAW GOVERNING CONTEMPT PROCEEDINGS

A. Contempt Proceedings Are Controlled by Both Statute and Common Law.

As the Utah Supreme Court has recently explained, contempt proceedings are governed by both statutory and common law:

Utah law on the subject of contempt must be drawn together from case law and from statutes. The earliest law in this area is decisional and based on the common law. *See, e.g., In re Whitmore*, 9 Utah 441, 35 P. 524 (1894); *People v. Owens*, 8 Utah 20, 28 P. 871 (1892). The substantive and procedural rules were then altered by statute. *See, e.g., Compiled Laws of Utah* §§ 1790, 1807, 6990, 7058-73, 7525-29, 9465 (1917). This legislation was not comprehensive, and our subsequent decisions seem to take the position that to the extent the common law was not inconsistent with the statutes, it survives and can continue to evolve. *See, e.g., Powers v. Taylor*, 14 Utah 2d 118, 378 P.2d 519 (1963); *Robinson v. City Court ex rel. City of Ogden*, 112 Utah 36, 47-49, 185 P.2d 256, 261-62 (1947) (Wolfe, J., concurring).

Von Hake v. Thomas, 759 P.2d 1162, 1166-1167 (1988). The statutory framework is now set out at Utah Code §§ 78B-6-301 et seq. In pertinent part, Utah Code § 78B-6-301 identifies disobedience of any lawful order of the court as an act or omission that constitute a “contempt[] of the authority of the court.” Utah Code § 78B-6-301(5). The “facts constituting” a contempt which does *not* occur in the immediate presence of a court of judicial officer must be presented to the court through an affidavit,³ and an “order to show cause” may be granted. Utah Code §§ 78B-6-302(2), 303. At a hearing on an order to show cause at which the person alleged to have

³ Utah Code § 78B-18a-104(1) states an “unsworn declaration meeting the requirements of this chapter has the same effect as a sworn declaration.”

engaged in the contemptuous conduct appears, “the court shall proceed to investigate the charge, and hear any answer which the person arrested may make. The court may examine witnesses for or against the person ...” Utah Code § 78B-6-309.

B. The Elements of Contempt Where the Contemptuous Conduct Is the Violation of A Court’s Order Enjoining Certain Conduct.

As to some acts or omissions which may constitute contempt, the common law generally sets forth *three* elements which must be proven: 1) that the person cited for contempt knew what was required; 2) that the person had the ability to comply; and 3) that the person intentionally failed or refused to do so. *See Von Hake*, 759 P.2d at 1172.

However, the third “intentionality” element may not be necessary to a finding of civil contempt where the contemptuous conduct is, as here, violation of an order enjoining certain conduct. “The Utah courts have long recognized that civil contempt for violation of a court order or injunction requires no intent.” *Gill v. Gill*, 718 P.2d 779, 781 (1986) (Justice Zimmerman, dissenting, quoting *Gunnison Irrigation Co. v. Peterson*, 280 P. 715, 717 (Utah 1929)). This has also been the common law standard throughout the United States according to the United States Supreme Court:

The absence of willfulness does not relieve from civil contempt. Civil as distinguished from criminal contempt is a sanction to enforce compliance with an order of the court or to compensate for losses or damages sustained by reason of noncompliance. Since the purpose is remedial, it matters not with what intent the defendant did the prohibited act.

McComb v. Jacksonville Paper Co., 336 U.S. 187, 1917 (1949) (internal citations omitted). The United States Supreme Court reaffirmed this principle just seven years ago. “We have explained before that a party’s subjective belief that she was complying with an order ordinarily will not insulate her from civil contempt if that belief was objectively unreasonable.” *Taggart v. Lorenzen*, 587 U.S. 554, 561 (2019).

The United States District Court for the District of Utah has also explained that civil contempt under analogous federal law for violation of a court order need not be willful:

In order for a party to be cited for civil contempt, a court must find that the party violated a specific and definite court order and that the party had knowledge of the order sufficient to put him on notice of the proscribed conduct. Nevertheless, the disobedience in a civil contempt need not be willful because the purpose of civil contempt sanctions is remedial.

In re Skinner, 90 B.R. 470, 472 (D. Utah 1988).

C. Burden of Proof.

In a civil contempt proceeding, the burden of proof is one of “clear and convincing evidence.” *Von Hake*, 759 P.2d at 1172.

D. Remedial Purpose of Civil Contempt Proceedings.

In light of the refusal of the Utah County Attorney’s Office to voluntarily disclose the documents and information requested by Mr. Robinson which relates directly to the contemptuous conduct, Mr. Robinson reserves identification of the precise remedies he seeks until the conclusion of the proposed “show cause” hearing that is required by Utah Code § 78B-6-309. However, in a highly analogous case arising in this same county and in a death penalty proceeding, a district court did conclude prior to trial that the County Attorney’s public statements in violation of Rule 3.6 warranted both his disqualification and certain trial remedies.

In *Leavitt v. Off. of Pro. Conduct*, the Utah Supreme Court recounted that,

As Baum's trial approached, defense counsel moved the court to sanction Leavitt, change venue, and expand the jury venire based in part on Leavitt's statements at the press conference. The district court denied the request for a change of venue, but it did expand the jury venire. The court also sanctioned Leavitt individually. It concluded that his statements violated rule 3.6, and consequently it disqualified Leavitt from participation in the case.

2025 UT 46, ¶ 14, 579 P.3d 343.⁴

It is well established under Utah law that the sanctions which the Court may impose after a finding of civil contempt include, *inter alia*, the remedial purpose of “compensating an aggrieved party for injuries resulting from the failure to comply with an order.” *Von Hake*, 759 P.2d at 1168. In the Leavitt OSC proceeding, while the district court disagreed with Baum’s assertion that only an order barring the State from seeking the death penalty could remedy the harm caused by Leavitt’s violation of Rule 3.6, the court did not conclude that such a remedy was beyond its authority to impose where the facts support it. *See* Exhibit D, at 11-20 (*Ruling and Order Granting in Part and Denying in Part Defendant’s Motion for Sanctions Re: Prosecutorial Misconduct*). The district court ultimately did disqualify Leavitt from the prosecution and ordered other forms of remedial relief.

Again, Mr. Robinson will await this Court’s discovery order under Rule 16 and its fulfillment of its obligation to conduct the hearing required by Utah Code § 78B-6-309 before identifying the remedies he views as necessary to compensate “for injuries resulting from the failure to comply with an order” but it is notable that the contemptuous conduct at issue here occurred after both the entry of this Court’s *Pre-Trial Publicity Order* and the Supreme Court’s decision in *Leavitt*.

⁴ In addition to the shocking similarity between Leavitt’s public statements in the Baum capital prosecution and those recently made by the Utah County Attorney’s Office through Mr. Ballard, the Utah Supreme Court opinion in Leavitt’s petition for review of an Order for Discipline, counsels that a very careful and searching factual inquiry is necessary before this Court can reach conclusions about the scope of the contemptuous conduct and the remedies that are appropriate. *Leavitt*, 2025 UT 46. Mr. Robinson’s discovery request, rejected out of hand by the Utah County Attorney’s Office, sought the type of documents and information that were so carefully analyzed by the district court in *Baum*, by the Supreme Court’s Ethics and Discipline Committee and, ultimately, by the Supreme Court itself. The Supreme Court opinion is, in fact, a roadmap for how this Court should conduct this contempt proceeding.

II. THIS COURT SHOULD COMPEL THE STATE ATTORNEY'S OFFICE TO PRODUCE THE DOCUMENTS AND INFORMATION SOUGHT IN MR. ROBINSON'S DISCOVERY REQUEST.

After learning of Mr. Ballard's recent and contemptuous media tour, Mr. Robinson informally sought from the Utah County Attorney's Office documents and information which would disclose the scope of that offices' recent contacts with media entities, copies of communications with those entities, and internal communications about those contacts. *See Ex.*

B. The Utah County Attorney's Office quickly dispatched their objection. *See Ex. C.*

Notwithstanding that objection, the documents and information Mr. Robinson seeks are discoverable both pursuant to Rule 16(a)(4) and in connection with the contempt hearing required by Utah Code § 78B-6-309. Moreover, the Rules of Professional Responsibility require more.

Rule 16(a)(4) provides that "[t]he prosecutor must disclose any other item of evidence which the court determines on good cause shown should be made available to the defendant in order for the defendant to adequately prepare a defense." Utah R. Crim. P. 16(a)(4).

The Utah Supreme Court has explained:

Our Utah rule is a general parallel of the federal provision. Like the federal rule, our criminal rule 16 requires the government to "disclose to the defense" certain information in its possession. Utah R. Crim. P. 16(a). Under the Utah rule, the information to be disclosed includes "evidence which the court determines on good cause shown should be made available to the defendant in order for the defendant to adequately prepare his defense." *Id.* 16(a)(5). And our rule also recognizes the authority of the court to enter sanctions for any failure "to comply with this rule." *Id.* 16(g). Like the federal rule, our rule spells out specific sanctions that may be entered, but also states that the court "may enter such other order as it deems just under the circumstances." *Id.* 16(g).

State v. DeJesus, 2017 UT 22, ¶ 63, 395 P.3d 111.

It is also axiomatic that in connection with a contempt proceeding, if a Court is going to conduct the hearing provided for by Utah Code § 78B-6-309, it has the authority to compel

disclosure of documents and information that is germane to the contemptuous conduct at issue. The State cannot erect a firewall around documentary evidence related to its contemptuous conduct in order to defeat either a motion for an order to show cause, the show cause hearing itself, or the Court's and the injured party's assessment of the gravity of the misconduct and the scope of the sanctions which are necessary to remedy injuries or punish the contemnor. Moreover, the Utah Rules of Professional Responsibility provide that "[a] lawyer shall not: (d) in pretrial procedure ... fail to make reasonably diligent effort to comply with a legally proper discovery request by an opposing party..." Utah R. Prof'l Cond. 3-3.4.

The Court should promptly compel the Utah County Attorney's Office to comply with Mr. Robinson's discovery request.

CONCLUSION

After seeking and obtaining clarification of this Court's *Pre-Trial and Trial Publicity Order*, the Utah County Attorney's Office has clearly violated those provisions which are designed to protect Mr. Robinson's right to a fair trial. There can be no dispute that the Utah County Attorney's Office, including both Mr. Gray and Mr. Ballard, were well aware of the conduct and statements which the Order enjoins, and that there is no legitimate limitation on their ability to comply with it. While a finding of intentionality is not necessary here, the decision to engage in media interviews and to send written statements to the press demonstrates the willfulness of the violations.

This Court should issue an Order to Show Cause, should order the disclosures sought by Mr. Robinson, and should promptly schedule a hearing pursuant to Utah Code § 78B-6-309. Once the scale of the contemptuous conduct is more fully understood, the propriety of alternative sanctions and remedies will be better understood.

RESPECTFULLY SUBMITTED this 15th day of April, 2026.

/s/ Kathryn N. Nester
Kathryn N. Nester

/s/Richard G. Novak
Richard G. Novak

/s/ Michael N. Burt
Michael N. Burt

/s/ Staci Visser
Staci Visser

Attorneys for Defendant, Tyler James Robinson

CERTIFICATE OF SERVICE

This is to certify that a true and correct copy of the foregoing was served via the Court's electronic filing system on the 15th day of April, 2026, which served all attorneys of record.

/s/ Staci Visser
Staci Visser

Exhibit A

**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**PROTECTION ORDER
RE: PRE-TRIAL AND TRIAL
PUBLICITY**

Case No. 251403576

Judge Tony F. Graf, Jr.

Defendant Tyler James Robinson is charged with one count of aggravated murder and other felonies.

This case has generated and is likely to continue to generate significant pre-trial and trial publicity. That publicity can compromise Defendant Tyler James Robinson's right to due process of law as well as both parties' rights to a fair and impartial jury trial. Pre-trial publicity is of particular concern because it can taint the prospective jury pool.

To protect the parties' fundamental rights, the court, on its own motion, issues the following:

PROTECTION ORDER

Lawyers who have participated, who are now participating, or who will yet participate in the investigation or litigation of this case in any way shall abide strictly by Rule 3.6. of the Utah Rules of Professional Conduct. Rule 3.6 prohibits a lawyer from making "an extrajudicial statement that the lawyer knows or reasonably should know will be disseminated by means of public communication and will have a substantial likelihood of materially prejudicing an adjudicative proceeding in the matter." Utah R. Prof. Cond. 3.6(a).

Lawyers who have participated, who are now participating, or who will yet participate in the investigation or litigation of this case shall not intentionally, knowingly, or recklessly permit a witness, investigator, consultant, staff member, or other member of the prosecution or defense team to make extrajudicial statements which, if made by the lawyer, would violate Rule 3.6. To that end, lawyers participating in the investigation or litigation of this case shall inform all witnesses, investigators, consultants, staff members, or other members of the prosecution or defense teams about the prohibitions contained in this order.

This protection order applies to lawyers who are not participating in the investigation or litigation of this case, but who are associated with the Utah County Attorney's office or associated with defense counsels' firm or firms. *See* Utah R. Prof. Cond. 3.6(d). Court staff is also ordered to not make public statements that would violate the provisions of this order.

This order does not prohibit lawyers from making statements permitted by Rule 3.6. *See* Utah R. Prof. Cond. 3.6(b)(c).

Dated this 16th day of September, 2025.

BY THE COURT:



Judge Tony F. Graf Jr.
District Court Judge



**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**RULING AND ORDER GRANTING
THE STATE'S MOTION TO
CLARIFY COURT'S PRE-TRIAL
AND TRIAL PUBLICITY ORDER**

Case No. 251403576
Judge Tony F. Graf, Jr.

The court issued a Protection Order Regarding Pre-Trial and Trial Publicity in this case. (Dkt. 23). The order prohibits attorneys who are associated with the prosecution and defense of this case from

intentionally, knowingly, or recklessly permit[ing] a witness, investigator, consultant, staff member, or other member of the prosecution or defense team to make extrajudicial statements which, if made by the lawyer, would violate Rule 3.6. To that end, lawyers participating in the investigation or litigation of this case shall inform all *witnesses*, investigators, consultants, staff members, or other members of the prosecution or defense teams about the prohibitions contained in this order.

(Dkt. 23) (emphasis added).

The State moves to amend or clarify the court's use of the word "witness" as used in the publicity order because it is vague, ambiguous, and overbroad. (Dkts. 167, 204). The State asserts that there are over 3,000 lay witnesses of the alleged homicide. The State does not know if it must inform each potential and possible witness of the prohibitions in the order or whether the order applies only to witnesses who are members of the attorneys' teams, such as investigators or experts.

Due to the potential confusion, the court grants the State's motion and offers the following clarification: The word "witness" as used in the order applies to all witnesses who are part of the

prosecution and defense teams. This includes any witness, including lay witnesses, whom the prosecution or defense has a good faith belief will be called to testify at a hearing or trial.

The court also clarifies that the publicity order, as written, regulates the behavior of attorneys who are associated with the defense team or the Utah County Attorney's Office. It requires the attorneys to abide by Rule 3.6 and, in order to deter non-attorneys from making prejudicial statements, requires the attorneys to *inform* witnesses about the prohibitions in the publicity order. Informing witnesses about the prohibitions in the publicity order is a necessary step toward not intentionally, knowingly, or recklessly permitting witnesses from making prejudicial statements. The publicity order does not regulate the behavior of any person who is not an attorney associated with this case.

This is the order of the court for the matters addressed herein.¹

Dated this 15th day of December, 2025.

BY THE COURT:



Judge Tony F. Graf, Jr.
District Court Judge



¹ Defense counsel represents that they intend to file a motion to amend the publicity order. The court will address defense counsel's motion when it is filed and briefing is completed.

CERTIFICATE OF NOTIFICATION

I certify that a copy of the attached document was sent to the following people for case 251403576 by the method and on the date specified.

MANUAL EMAIL: KATHRYN NESTER KATHY@NESTERLEWIS.COM

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12/15/2025

/s/ TREENA HANSEN

Date: _____

Signature

Exhibit B

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IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT
IN AND FOR THE COUNTY OF UTAH, STATE OF UTAH

STATE OF UTAH, Plaintiff, vs. TYLER JAMES ROBINSON, Defendant.	DEFENDANT TYLER JAMES ROBINSON'S SUPPLEMENTAL REQUEST FOR DISCOVERY Case No. 251403576 Honorable Tony F. Graf, Jr.
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Defendant, Tyler James Robinson, by and through undersigned counsel, hereby requests the Utah County Attorney's Office (UCAO), on behalf of the State of Utah, provide the documents and information identified below in discovery. This request is made pursuant to Utah Rule of Criminal Procedure 16; the Due Process Clauses of the Fifth and Fourteenth Amendments of the United States Constitution and article I, section 7 of the Utah Constitution; the Sixth Amendment of the United States Constitution and article I, section 12 of the Utah State Constitution; and, where the State is seeking the penalty of death in this case, the Eighth Amendment of the United States Constitution and article I, section 9 of the Utah Constitution. It is also pursuant to Rule 3.6 of the Utah Rules of Professional Conduct and the District Court's Pre-Trial and Trial Publicity Order dated September 16, 2025, as amended on December 15, 2025.

Mr. Robinson requests that the UCAO provide the following documents and information **no later than April 10, 2026:**

1. True and correct copies of any and all written statements by or on behalf of any representative of the UCAO and any media entity regarding any and all aspects of this case between March 26, 2026 and the date of the response to this request.
2. A comprehensive list of all UCAO written, in person, virtual, and/or telephonic contacts with media entities regarding this case between March 26, 2026, and the date of the response to this request. This list should include the date and approximate time of each contact and the full names of all individuals involved in each contact.
3. True and correct copies of all written or otherwise memorialized communications between the UCAO and media entities referenced in request (2).
4. True and correct copies of all UCAO written or otherwise memorialized internal communications discussing the potential or actual content of communications between the

UCAO and media entities concerning this case in the time period referenced above. This includes all communications related to the drafting, editing, approving, or otherwise addressing potential or actual written or oral statements to media entities among any and all employees of the UCAO, including but not limited to, all members of the prosecution team.

Mr. Robinson affirmatively requests that if any of the above do not exist, or if the State declines to disclose the requested documents and information, a written and filed response shall identify those documents or information which do not exist, which documents or items of information do exist but are not being disclosed, and the purported legal justification for not making such disclosures.

RESPECTFULLY SUBMITTED this 3rd day of April, 2026.

/s/ Kathryn N. Nester
Kathryn N. Nester

/s/Richard G. Novak
Richard G. Novak

/s/ Michael N. Burt
Michael N. Burt

/s/ Staci Visser
Staci Visser

Attorneys for Defendant, Tyler James Robinson

CERTIFICATE OF SERVICE

This is to certify that a true and correct copy of the foregoing was served via the Court's electronic filing system on the 3rd day of April, 2026, which served all attorneys of record.

/s/ Staci Visser

Staci Visser

Exhibit C

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IN THE DISTRICT COURT OF UTAH
FOURTH JUDICIAL DISTRICT, UTAH COUNTY

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

STATE'S OBJECTION TO
DEFENDANT'S SUPPLEMENTAL
REQUEST FOR DISCOVERY
(filed April 3, 2026)

Case No. 251403576

Honorable Tony F. Graf Jr.

The State of Utah, by and through its counsel, Chad E. Grunander, Deputy Utah County Attorney, and pursuant to Rule 16 of the Utah Rules of Criminal Procedure, hereby objects to Defendant's Supplemental Request for Discovery, filed on April 3, 2026.

DEFENDANT'S DISCOVERY REQUEST

Defendant requests copies of written statements between the Utah County Attorney's Office (UCAO) and the media related to this case between March 26, 2026 and April 10, 2026 (date of this response). Second, Defendant requests a "list of all UCAO written, in person, virtual, and/or telephonic contacts with media entities" during the same time frame, the approximate times

of the contacts, and the names of all individuals involved. Third, Defendant requests copies of “memorialized internal communications discussing the potential or actual content of communications between the UCAO and media entities concerning this case” during the same time period, including “all communications related to the drafting, editing, approving, or otherwise addressing potential or actual written or oral statements to media entities among” the prosecution team and other UCAO employees. Finally, if the requested material does not exist or the State declines to disclose it, Defendant asks the State to identify whether the material exists, “which documents or items of information do exist but are not being disclosed,” and the legal basis for not disclosing it.

STATE’S OBJECTION TO DEFENDANT’S REQUEST

Rule 16 of the Utah Rules of Criminal Procedure requires prosecutors to disclose to a defendant the following:

- [M]aterial or information directly related to the case of which the prosecution team has knowledge and control:
- (A) written or recorded statements of the defendant and any codefendants, and the substance of any unrecorded oral statements made by the defendant and any codefendants to law enforcement officials;
- (B) reports and results of any physical or mental examination, of any identification procedure, and of any scientific test or experiment;
- (C) physical and electronic evidence, including any warrants, warrant affidavits, books, papers, documents, photographs, and digital media recordings;
- (D) written or recorded statements of witnesses;
- (E) reports prepared by law enforcement officials and any notes that are not incorporated into such a report; and
- (F) evidence that must be disclosed under the United States and Utah constitutions, including all evidence favorable to the defendant that is material to guilt or punishment.

Utah R. Crim. P. 16(1). Rule 16(4) provides, “The prosecutor must disclose any other item of *evidence* which the court determines on good cause shown should be made available to the

defendant in order for the defendant to adequately prepare a defense.” Utah R. Crim. P. 16(4) (emphasis added).

Simply put, the discovery rules and other authorities cited by Defendant do not require the State to provide the requested documents and information, and this Court has not made a finding of good cause and ordered the State to produce the materials. Moreover, the requested documents and information are not “evidence” as contemplated by the discovery rules, and the State seeks to avoid creating an expectation that it will provide similar material to Defendant in the future.

RESPECTFULLY SUBMITTED this 10th day of April 2026.

/s/ Chad E. Grunander
CHAD E. GRUNANDER
Chief Deputy Utah County Attorney

CERTIFICATE OF DELIVERY

I certify that I caused the State's Objection to Defendant's Supplemental Request for Discovery (filed April 3, 2026) to be filed on 04/10/2026 through the Court's e-filing system and it was thereby delivered to defense counsel of record for Defendant:

/s/ Chad E. Grunander

CHAD E. GRUNANDER

Deputy Utah County Attorney

Exhibit D

**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH, Plaintiff, v. JERROD WILLIAM BAUM, Defendant.	<u>RULING AND ORDER</u> GRANTING IN PART AND DENYING IN PART DEFENDANT’S MOTION FOR SANCTIONS RE: PROSECUTORIAL MISCONDUCT Case No. 181401062 Judge Derek P. Pullan
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Defendant Jerrod Baum filed a Motion for Sanctions Re: Prosecutorial Misconduct on February 18, 2021. (Docket no. 1571). The State opposed the motion on March 31, 2021. (Docket no. 1739). Defendant filed a reply on April 27, 2021. (Docket no. 1793). Defendant filed supplemental authority on May 18, 2021. (Docket no. 1858). The State responded to Defendant’s supplemental authority on May 26, 2021. Docket no. 1863). The parties filed a set of stipulated facts on July 27, 2021, (Docket no. 2024), and the Court held an evidentiary hearing on July 29, 2021. Defendant filed a supplemental memorandum on August 24, 2021, (Docket no. 2093), and the State filed a supplemental memorandum on September 15, 2021, (Docket no. 2135). The parties met for oral argument on November 12, 2021.

After considering the papers, the evidence presented at the evidentiary hearing, and the arguments of the parties, the Court enters the following:

RULING

Defendant raises eight claims¹ of prosecutorial misconduct and requests sanctions, including dismissal of his criminal case, disqualification of the Utah County Attorney, disqualification of the Utah County Attorney's Office ("the UCAO"), change of venue, and expansion of the jury venire.

Inherent Authority of the Court

This Court has inherent authority to determine whether the prosecutorial misconduct alleged by Defendant occurred, and to impose appropriate sanctions aimed at protecting "[t]he integrity of the court system as well as the integrity of the [legal] profession." *Margulies v. Upchurch*, 696 P.2d 1195, 1205 (Utah 1985); see *Featherstone v. Schaerrer*, 2001 UT 86, ¶ 18, 34 P.3d 194, 200 (trial court has inherent authority to determine whether court rules or ethical codes have been violated and to impose appropriate remedies). "[T]o hold otherwise would reduce the Rules of Professional Conduct to near uselessness, for it would bind the 'inherent powers' of judicial regulation by allowing attorneys who have violated the ethics code to hide behind the guise that only the state bar association may enforce the rules. Such a result would fly in the face of our repeated reminders that courts must 'maintain and protect the integrity and dignity' of the profession." *Id.* (citing *In re Evans*, 130 P. 217, 225 (Utah 1913)).

With this inherent authority in mind, the Court turns to the substance of Defendant's eight claims of prosecutorial misconduct.

¹ In his supplemental memorandum, Defendant raised a ninth claim of prosecutorial misconduct—that one prosecutor made a material misrepresentation to the Court about prosecutors having never met alone with Morgan Henderson. Defendant raised this claim for the first time in his supplemental memorandum. It has not been adequately briefed. Therefore, the Court declines to address it.

Defendant's Eight Claims of Prosecutorial Misconduct

1. Defendant's Claim that the UCAO failed to take reasonable measures to prevent law enforcement from making prejudicial statements to the media.

a. Findings of Fact

i. Sergeant Spencer Cannon is the public information officer for the Utah

County Sheriff's Office ("the UCSO"). He has been the public

information officer for approximately eighteen years. (Tr. 55-56).²

ii. Sgt. Cannon regularly gives interviews and statements to news

media in various cases, "several times a week usually." (Tr. 17, 56-57).

iii. Sgt. Cannon understands his role as public information officer as

"the voice through which Utah County Sheriff's Office communicates to

the public". (Tr. 56).

iv. Sgt. Cannon described his approach to his role thus:

Sharing information basically, responding to inquiries from the public and the media. When we have information that we believe might be of interest to the public, that the media may not be aware of, to put that information out. * * *

I try to picture myself when I hear a news story, what am I – how am I impacted by that when I'm sitting on my couch at home watching the news and I see a – a case like this . . . I try to picture myself, how I'm impacted by that and – and what I want to know about it, as much as I can at that level. And so when I then give information out, I try to keep that in mind as I'm sharing information with the public, whether it relates to specifics about the case itself or the – the dangers that may exist from that particular case or any other case like it or situation like it. And so those are the kinds of things that I keep in mind when I'm sharing that information.

* * * Q: [Y]our goal is to give the public what it wants to hear?

² Any citations to "Tr." in this Ruling and Order Refer to the Transcript for the Evidentiary Hearing on July 29, 2021, found in Docket no. 2093, Ex. A.

A: As much as I can, yes. * * *

Q: So when you say – you say what the public wants to hear, you mean what you would want to hear about what’s going on if you are listening to the news; is that right?

A: That is true, yeah, I – I try to share information, as much about it as I can, but I also understand that there’s certain information about a case, especially one that I’m not involved in, that I’m just not going to know maybe ever or at least until it starts coming out in court.

(Tr. 56, 63-64. 66).

v. Over the years, the UCSO caused Sgt. Cannon to receive training as a public information officer. Specifically, Cannon (1) read the policies of the UCSO; and (2) attended conferences for public information officers, including one offered by the State of Utah and one offered by the National Training Center in Fredericksburg, Maryland. (Tr. 58).

vi. The UCAO is the prosecuting entity for many law enforcement agencies in Utah County, including the UCSO. Like the UCSO, these law enforcement agencies may designate a police officer or other employee to act as a public information officer regarding pending criminal cases.

vii. The UCAO does not offer any formal training program for these public information officers regarding what they can ethically say to the media about a pending criminal case. (Tr. 12).

viii. The UCAO does not assign a specific attorney to consult with or train these public information officers regarding ethical media contact. (*Id.*).

ix. Thus, whatever instruction or training may be provided to these public information officers by the UCAO occurs on an ad hoc basis. (*Id.*).

- x. The UCAO does not monitor the statements made to the media by these public information officers about pending criminal cases the UCAO is prosecuting. (Tr. 60-61).
- xi. In his capacity as public information officer, Cannon was assigned to be the media liaison regarding the investigation and prosecution of this case against Defendant.
- xii. The UCAO was aware that Sgt. Cannon was “the person the media would contact with questions about the case” because Sgt. Cannon regularly gave interviews in other cases and was “the go-to person for media relations in the county sheriff’s office.” (Tr. 16-17).
- xiii. Mr. Chad Grunander—a deputy Utah County attorney assigned to this case during the time period relevant to Defendant’s motion for sanctions—believed Sgt. Cannon understood his role as a public information officer and the ethical limits on what he could say to the media about the case. Mr. Grunander believed this because of Sgt. Cannon’s long experience as a public information officer for the UCSO. (*Id.*).
- xiv. Both the UCAO and the UCSO were aware of the high-profile nature of this case. Each office had received several requests for media comments, and each had released official public statements. (Tr. 14-15, 57-58).
- xv. Despite the high-profile nature of this case, before January 2019 no one at the UCAO instructed Sgt. Cannon about the ethical limits

applicable to his role as public information officer assigned to this case.
(Tr. 15, 59, 61-62).

xvi. In his capacity as public information officer assigned to this case, Sgt. Cannon gave two interviews with Abby Bonell of KNRS, a Utah-based news and talk-radio station. The first interview occurred on or about April 22, 2018. The second interview occurred eight months later on or about January 3, 2019.

xvii. During the KNRS interviews, Sergeant Cannon detailed the investigation of the alleged murders in this case up to that point. He insinuated that Defendant had control over Morgan Henderson—a key State witness—and was influencing her comments to the police. Sgt. Cannon vouched for Henderson’s credibility in providing evidence and speculated about Defendant’s motive for killing Brelynne Otteson and Riley Powell. He referred to Defendant as “evil,” detailed some of Defendant’s criminal history, and referred to the victims as “innocent.”

xviii. Neither Mr. Grunander nor his co-counsel, Mr. Randy Kennard, knew that Sgt. Cannon was participating in either KNRS interview before either interview took place.

xix. In July 2018, the UCAO requested that the defense disclose a copy of Sgt. Cannon’s April, 2018, interview with KNRS (*Affidavit of Haley Christensen*). The defense disclosed the copy, but no attorney at the UCAO watched or read the interview after it was received or prior to Sgt. Cannon’s second KNRS interview in January 2019. (Tr. 13-16).

- xx. No attorney at the UCAO was assigned to monitor statements Sgt. Cannon made to the media about this case. (Tr. 15-16).
- xxi. Sgt. Cannon testified that all of the statements he made during the KNRS interviews were in keeping with his training as a public information officer. (Tr. 59).
- xxii. Sometime after Sgt. Cannon's second interview with KNRS, the UCAO (1) discussed with him the scope of statements that could ethically be made about a pending criminal case; and (2) provided him with a copy of this Court's order relating to pretrial publicity. (Tr. 62).³

b. Conclusions of Law

Rule 3.8(e) of the Utah Rules of Professional Conduct mandates that prosecutors in a criminal case "[e]xercise reasonable care to prevent . . . law enforcement personnel . . . from making an extrajudicial statement that the prosecutor would be prohibited from making under Rule 3.6."

Pursuant to Rule 3.6, prosecutors are prohibited from making "an extrajudicial statement that the lawyer knows or reasonably should know will be disseminated by means of public communication and will have a substantial likelihood of materially prejudicing an adjudicative proceeding in the matter." Comment 5 to the rule outlines kinds of statements "that are more likely than not to have a material prejudicial effect on a [criminal] proceeding." These include, in part, statements about the character, reputation, or criminal record of a suspect, an "opinion as

³ At the evidentiary hearing, Sgt. Cannon testified that all of his statements to KNRS were in keeping with his training as a public information officer. This testimony is astonishing in light of the fact that (1) prosecutors discussed with Sgt. Cannon the ethical limits of Rule 3.6 well before the evidentiary hearing; and (2) so many of Sgt. Cannon's statements constituted textbook violations of Rule 3.6.

to the guilt or innocence of a defendant,” and statements about evidence that would likely be inadmissible at trial.

In his interviews with KNRS, Sgt. Cannon vouched for the credibility of a key state witness, called the Defendant “evil,” detailed some of Defendant’s criminal history, and set out the results of the investigation with no apparent consideration of whether the evidence he described would be admissible in court. Cannon knew these statements to KNRS would be disseminated by means of public communication, and the statements are textbook examples of communications carrying a substantial likelihood of materially prejudicing the adjudication of this criminal case. If the same statements had been made by a prosecutor, the prosecutor would be in violation of Rule 3.6 of the Rules of Professional Conduct.

Thus, two questions remain to be answered. First, did theUCAO exercise “reasonable care,” as required under Rule 3.8 of the Utah Rules of Professional Conduct, to prevent Sgt. Cannon from making extrajudicial statements to the media that violated Rule 3.6? Second, if theUCAO did not exercise reasonable care, what sanction is appropriate?

As to the first question, the Utah Rules of Professional Conduct and Utah case law are silent as to what constitutes “reasonable care” for purposes of Rule 3.8. Defendant argues the phrase should be interpreted the same way “reasonable care” is interpreted in the civil context when assessing whether a person or entity has committed negligence. In this context, reasonable care imposes an affirmative duty to act. *See B.R. ex rel. Jeffs v. West*, 2012 UT 11, ¶ 7, 275 P.3d 228, 231.

Rule 3.8(f) of the ABA’s Rules of Professional Conduct is almost identical to Utah’s Rule 3.8(e). The ABA Rule reads, in relevant part: “The prosecutor in a criminal case shall: . . . exercise reasonable care to prevent . . . law enforcement personnel . . . from making an

extrajudicial statement that the prosecutor would be prohibited from making under Rule 3.6.”

Given this striking similarity, the Court finds the ABA Rule to be persuasive authority.

According to Comment 6 to the ABA Rule, “the reasonable care standard will be satisfied if the prosecutor issues the appropriate cautions to law-enforcement personnel and other relevant individuals.” Thus, at a minimum, reasonable care requires some affirmative step to caution law enforcement about its duty not to make extrajudicial statements to the media which, if made by a prosecutor, would violate Rule 3.6.

Before the first and second KNRS interviews occurred, the UCAO took no steps to train, instruct, or caution Sgt. Cannon about his duty to not make statements to the media which violated Rule 3.6. Merely relying on Sgt. Cannon’s long history as an experienced public information officer does not constitute reasonable care for purposes of Rule 3.8. This is especially true in a high-profile aggravated murder case like this one.

Having found that many of Sgt. Cannon’s statements to KNRS violated Rule 3.6 and that the UCAO breached its duty of reasonable care to prevent Sgt. Cannon from making such statements, the Court must now determine what sanction is appropriate. Defendant’s proposes four possible sanctions—dismissal of the charges, disqualification of the UCAO, change of venue, and enlargement of the prospective juror pool.

When determining the appropriate sanction for misconduct, the Court “should be careful to ensure that any sanction is appropriately related to the nature of the misconduct and the resulting prejudice, either actual or potential.” *Wilson v. IHC Hosps., Inc.*, 2012 UT 43, ¶ 94, 289 P.3d 369, 395. The UCAO’s failure to exercise reasonable care to prevent Sgt. Cannon from making statements to the media which violated Rule 3.6 constituted negligence. Negligent omissions are not of the same class as willful or intentional misconduct. It is true that some

jurors on the venire panel may have been exposed to and influenced by Sgt. Cannon's KNRS interviews. But the prejudice arising from that exposure can be identified during jury selection and eliminated by the prudent exercise of challenges for cause. The KNRS interviews do create a risk of mistrial based on too many potential jurors being excused for cause. But that risk can be avoided by expanding the venire.

For these reasons, the Court concludes that dismissal of the entire criminal case and disqualification of theUCAO are sweeping sanctions disproportionate to the actual or potential prejudice arising from theUCAO's negligence. Change of venue will not mitigate the risk of prejudice because KNRS is a Utah-based news and talk radio show. There is no evidence before the Court suggesting that the radio station's audience is limited to Utah County residents. Thus, the sanction appropriate for theUCAO's violation of Rule 3.8 is to expand the jury pool—which this Court has already done.

In reaching this conclusion, the Court does not excuse the seriousness of theUCAO's failure to caution Sgt. Cannon against making inappropriate statements. Sgt. Cannon's clear violation of Rule 3.6, and his insistence at the evidentiary hearing that he had said nothing prejudicial during either KNRS interview, speaks to the very reason Rule 3.8 is necessary. Certainly, the better practice is to have a system in place by which assigned public information officers employed by law enforcement receive training or instruction from theUCAO about the requirements of Rule 3.6. Failure to implement such a system—especially after having been placed on notice of the legal duty to caution public information officers under Rule 3.8—combined with a repeated pattern of prosecutors failing to exercise reasonable care may well constitute evidence of intentional misconduct warranting a more serious sanction.

For these reasons, as to Defendant's first claim for prosecutorial misconduct, the Court GRANTS in part Defendant's motion for sanctions. The sanction is to expand the venire panel—which the Court has already done. Defendant's request for other sanctions is DENIED.

2. Defendant's Claim that the Utah County Attorney made prejudicial statements in a press conference.

a. Findings of Fact

- i. On the morning of July 31, 2019, Utah County Attorney David Leavitt ("the County Attorney") held a press conference. Public media outlets were invited and attended. The conference was live-streamed on the County Attorney's public Facebook page.
- ii. The County Attorney knew or reasonably should have known his statements during the press conference would be disseminated by means of public communication.
- iii. The transcript of the press conference, attached as Exhibit C to Defendant's Motion, is accurate.
- iv. During the press conference, the County Attorney said that Defendant treated the victims in this case like "garbage" or "trash." He spoke about the substantial cost of death penalty litigation and suggested that even if the Defendant was convicted and sentenced to death, he would not actually be executed. The County Attorney stated that his motive for seeking the death penalty was to protect the public, and that he did not intend to offer the Defendant a plea bargain.
- v. One reporter asked the County Attorney, "Are you concerned about the evidence in this case with not [having] a lot of physical

evidence, bringing up the death, and, you know, a plea deal wherein there is only just the one witness? The lack of evidence there?” (Tr. 12-

13). Referring to this one witness, the County Attorney responded:

And we have concluded in our estimation, this witness is credible. This—this witness testimony has been corroborated. And we believe this witness. And we believe this witness, quite frankly, based on a lot of evidence that the jury will never hear. And so we know things that the jury will never hear which helps us to believe and strengthens our belief that this man committed this murder, these murders.

(Tr. 13).

vi. The County Attorney also said that “[i]f pulling a trigger or injecting a needle would bring Breezy or Riley back, [he] would do so personally.” (Tr. 11).

vii. The video of the press conference remained posted on the County Attorney’s Facebook page until January 2020.

b. Conclusions of Law

Rule 3.6. of the Utah Rules of Professional Conduct provides:

A lawyer who is participating or has participated in the investigation or litigation of a matter shall not make an extrajudicial statement that the lawyer knows or reasonably should know will be disseminated by means of public communication and will have a substantial likelihood of materially prejudicing an adjudicative proceeding in the matter.

Comment 5 to the rule outlines the kinds of statements “that are more likely than not to have a material prejudicial effect on a [criminal] proceeding.” These exemplary statements include, in part, statements expressing an “opinion as to the guilt or innocence of a defendant,” and statements about evidence that would likely be inadmissible at trial.

The outcome of a criminal trial is to be decided by impartial jurors, who know as little as possible of the case [from extrajudicial sources], based on material

admitted into evidence before them in a court proceeding. Extrajudicial comments on, or discussion of, evidence which might never be admitted at trial and *ex parte* statements by counsel giving their version of the facts obviously threaten to undermine this basic tenet.

...

Because lawyers have special access to information through discovery and client communications, their extrajudicial statements pose a threat to the fairness of a pending proceeding since lawyers' statements are likely to be received as especially authoritative.

Gentile v. State Bar of Nev., 501 U.S. 1030, 1070, 1074 (1991) (internal citations omitted).

Comments by prosecuting attorneys, in particular, have the inherent authority of the government and are more likely to influence the public. When such seemingly credible information reaches the ears or eyes of the public, the jury pool may become contaminated, greatly diminishing the court's ability to assemble an impartial jury. The defendant's right to a fair trial, thus, may be compromised.

Attorney Grievance Comm'n of Md. v. Gansler, 835 A.2d 548, 559 (2003) (internal citation omitted).

Prosecutor comments to the media have a “substantial likelihood of materially prejudicing an adjudicative proceeding” if they are “(1) comments that are likely to influence the actual outcome of the trial, and (2) comments that are likely to prejudice the jury venire, even if an untainted panel can ultimately be found.” *Gentile*, 501 U.S. at 1075.

“In determining whether a lawyer's statements run the risk of materially prejudicing the case at hand, a court considers such factors as evaluating the statements themselves, the timing of the challenged statements, and whether the statements were published in the jury pool area.”

Underwood v. BNSF Ry. Co., 359 F. Supp. 3d 953, 956 (D. Mont. 2018) (citing to *Gentile v.*

State Bar of Nev., 501 U.S. 1030, 1044 (1991)). “Even if the passage of time, preventative measures by the trial court, and other factors prevent actual prejudice from occurring in a

particular case, it does not necessarily mean that a prosecutor's statements did not meet the

‘substantial likelihood’ standard when made.” *In re Brizzi*, 962 N.E.2d 1240, 1245 (Ind. 2012).

Here, the County Attorney called a press conference on July 31, 2019. Media representatives attended and asked questions during the conference. Clearly, the County Attorney knew that statements he made during the conference would be disseminated by means of public communication. Indeed, he caused a video of the conference to be live-streamed to and later posted on the County Attorney's public Facebook page.

During the press conference, the County Attorney vouched for the credibility of the State's key witness, stated that the Defendant had treated the victims like "trash," stated that the Defendant is the kind of person from whom the public must be protected, stated that the death penalty (even if imposed) will never actually be carried out, referred to the substantial cost of capital litigation on taxpayers and the unfairness of Utah County shouldering that burden in a case that had no meaningful connection to the County, and referred to corroborating inculpatory evidence that the jury would never hear.

These statements are textbook examples of extrajudicial statements carrying a substantial likelihood of prejudicing the adjudication of this case. This is especially true because of who made the statements and when he did so. The comments during the press conference were not the "off-the-cuff" remarks of some unknown assistant prosecutor. Rather, they were statements of the County Attorney himself, an elected official at the highest levels of the criminal justice system whose representations are very likely accepted by much of the public as authoritative. Finally, the statements were made at a critical moment of the litigation—in the very conference at which the County Attorney announced to the public his decision that the State would seek the death penalty in this case.

For all of these reasons, the Court concludes that the County Attorney's press conference statements, set out above, violated Rule 3.6. The remaining question is what sanction should be

imposed by the Court. Defendant proposes five possible sanctions—dismissal of the case, disqualification of the County Attorney, disqualification of theUCAO, change of venue, and enlarging the jury venire.

When determining the appropriate sanction for misconduct, the Court “should be careful to ensure that any sanction is appropriately related to the nature of the misconduct and the resulting prejudice, either actual or potential.” *Wilson v. IHC Hosps., Inc.*, 2012 UT 43, ¶ 94, 289 P.3d 369, 395. Here, the potential for prejudice is real. It is likely that some people on the venire panel will have heard and been influenced by the County Attorney’s authoritative statements made during the press conference.

Importantly, immediately after the conference, the County Attorney—acting on the advice of his chief deputy who had correctly concluded that the County Attorney had violated Rule 3.6—walled himself off from further participation in the prosecution of this case. The County Attorney did not reappear in any meaningful way in the case until recently when he retracted the State’s notice of intent to seek the death penalty.⁴ The decision of the County Attorney to effectively “disqualify himself” mitigated the prejudice arising from his press conference statements. The decision permitted theUCAO to proceed forward in this case, independent of the County Attorney’s supervision and influence. Moreover, the decision was an act of self-regulation—a hallmark of the learned professions. This self-regulation gives the public confidence in the integrity of the legal profession, notwithstanding periodic missteps taken by its members.

On the facts presented, dismissal of the entire case is a sweeping remedy disproportionate to the nature of the misconduct. The prejudice identified by the Defendant is a tainted jury pool.

⁴ The Defendant does not challenge this filing by the County Attorney.

But this prejudice can be identified during voir dire and eliminated through the prudent exercise of for cause challenges. There is a risk of mistrial because too many potential jurors may be excused for cause. But that risk can be eliminated by expanding the venire—something this Court has already done.

A change of venue will not mitigate prejudice arising from the County Attorney’s press conference statements. The conference was attended by a number of media outlets. There is no evidence before the Court that the media outlets communicated the conference to Utah County residents only. Moreover, Utah County is the second most populated county in Utah. It affords the Court an ample pool from which to draw an expanded venire.

Given the County Attorney’s self-disqualification after the press conference, the Court is not persuaded that theUCAO should be disqualified. From the date of that disqualification, theUCAO has prosecuted this case independent of the County Attorney’s supervision or influence.

Whether the County Attorney should be disqualified from further participation in the case is a harder call. In opposing this remedy, the State relies upon a Georgia case—*Williams v. State*, 369 S.E.2d 232 (Ga. 1988). In *Williams*, the Court held that “[t]here are two generally recognized grounds for disqualification of a prosecuting attorney. The first such ground is based on a conflict of interest, and the second ground has been described as ‘forensic misconduct.’” *Id.* at 238 (internal citation omitted). Forensic misconduct includes extrajudicial statements which may taint the jury. *See id.* “In determining whether an improper statement of the prosecutor . . . requires his disqualification, the courts have taken into consideration whether such remarks were part of a calculated plan evincing a design to prejudice the defendant in the minds of the jurors, or whether such remarks were inadvertent, albeit improper, utterances.” *Id.* at 239. The State

contends that because the press conference was not part of a calculated plan designed to prejudice the jury venire, disqualification of the County Attorney is unnecessary.

The Court disagrees. While the objective of the County Attorney in calling the press conference may not have been to prejudice the jury venire, the statements he made at the conference were substantially likely to have that effect. A member of the public hearing the authoritative remarks of his elected County Attorney made during the conference might (1) conclude that the State's key witness is credible and should be believed, because the County Attorney believes her and because there is inadmissible evidence known only to the County Attorney that corroborates her testimony; (2) conclude that the Defendant is a person to be feared by the community; (3) conclude that the death penalty decision is not a weighty one because the penalty will never actually be carried out; and (4) resent the Defendant for having unfairly imposed the substantial cost of capital litigation on Utah County taxpayers.

In considering the appropriate sanction, the Court gives weight to the fact that most of the County Attorney's statements were included in what appear to be prepared remarks. The press conference opens with what appears to be a planned speech by the County Attorney about the case and his thought processes in determining whether to seek the death penalty in this case. Prepared remarks—as opposed to inadvertent statements—merit a more severe sanction because, where there is preparation, Rule 3.6 violations can be more readily avoided.

In conclusion, the Court is not persuaded that a calculated plan to corrupt the jury pool is the only kind of forensic misconduct warranting disqualification. Prepared remarks by an elected prosecutor which clearly violate Rule 3.6 are sufficient grounds on which disqualification may be imposed as a sanction.

For these reasons, as to Defendant's second claim for prosecutorial misconduct, the Court GRANTS in part the Defendant's motion for sanctions. Consistent with the Court's prior decision, the venire is expanded. Consistent with the County Attorney's own prior decision, the County Attorney is disqualified from further participation in this case. The Court DENIES Defendant's motion to dismiss the case, disqualify theUCAO, and to change venue.

3. Defendant's claim that the Utah County Attorney remained on the case after making prejudicial statements

a. Findings of Fact

- i. The County Attorney authorized, under his own signature, the filing of the State's Notice of Intent to Seek Death (Docket no. 243). The Return of Electronic Notification indicates a filing time of approximately 2:40 pm on July 31, 2019, hours after the County Attorney's press conference and presumably after the County Attorney elected to wall himself off from further participation in the case. (Docket no. 244).
- ii. A Notice of Counsel stating that "counsel of record for the plaintiff on the above entitled case is Christine Scott, Carl Hollan, Kelsey Young and David Leavitt" was filed by the State on August 6, 2019. (Docket no. 248).
- iii. The County Attorney has never filed a withdrawal of counsel from this case.
- iv. On three occasions, the County Attorney conversed about this case with Mr. Ryan McBride, one of the assigned prosecutors. These conversations did not cover facts, trial strategy, or motions in the case, nor did the County Attorney give Mr. McBride any directives regarding the

case. These conversations took place in May and June, 2021, almost two years after the County Attorney decided to wall himself off from participation in the case.

v. On July 16, 2021, the County Attorney conversed about this case with Mr. Carl Hollan, another assigned prosecutor. The conversation did not cover facts, trial strategy, or motions in the case, nor did the County Attorney give Mr. Hollan any directives regarding the case.

vi. The decision of the County Attorney to withdraw from overseeing the prosecution of this case and to delegate supervisory authority to his chief deputy was made internally, and not mandated by order of any court or administrative tribunal.

b. Conclusions of Law

Rule 1.7(a)(2) of the Utah Rules of Professional conduct prohibits a lawyer from representing “a client if the representation involves a concurrent conflict of interest. A concurrent conflict of interest exists if . . . [t]here is a significant risk that the representation of one or more clients will be materially limited . . . by a personal interest of the lawyer.”

Defendant asserts that the County Attorney’s statements at the press conference created a conflict of interest that prevents him from representing the State in this case. In response, the State argues that the County Attorney’s alleged conflict of interest and ethical violations have never been adjudicated. Thus, the County Attorney’s decision to step back from this case was voluntary and not a result of a formal finding that he was legally required to do so.

Having disqualified the County Attorney based on violations of Rule 3.6, the Court need not determine whether his disqualification is required under Rule 1.7. This basis for disqualification is MOOT, and therefore DENIED.

4. Defendant's Claim that Mr. Carl Hollan discouraged Morgan Henderson from meeting with defense investigators

a. Findings of Fact

- i. Spencer Thomas is Morgan Henderson's attorney. (Tr. 22).
- ii. In the summer of 2019, Ms. Henderson was willing to meet with defense investigators about this case.
- iii. Mr. Thomas spoke with Mr. Carl Hollan, a prosecutor assigned to this case, and inquired whether Ms. Henderson meeting with defense investigators would violate her plea agreement. Mr. Hollan told Mr. Thomas that the meeting would not violate the plea agreement. (Tr. 115-16).
- iv. In a subsequent conversation, Mr. Hollan informed Mr. Thomas that (1) there is a potential that Ms. Henderson would violate her plea agreement depending on what she said to defense investigators, (Tr. 116-117); and (2) Ms. Henderson would be required to disclose to the State the entirety of her interview with defense investigators, (Tr. 24, 32, 116).
- v. Mr. Hollan told Mr. Thomas that if there were material inconsistencies between Ms. Henderson's statement to defense investigators and the sworn statement she gave in connection with her plea agreement, then Ms. Henderson may be in violation of her plea agreement. (Tr. 26-27, 32-33, 116).

- vi. If Ms. Henderson violates her plea agreement, she could potentially go to prison for 30 years. (Tr. 27-28).
- vii. After speaking with Mr. Hollan, Mr. Thomas evaluated the risks a meeting with defense investigators might pose to Ms. Henderson, explained those risks to her, and advised against meeting with defense investigators. So advised, Ms. Henderson decided against the meeting. (Tr. 34-39).
- viii. In February, 2020, Mr. Thomas sent an email to Mike Brown. In part, the email reads as follows: “I advised her not to speak with the defense based upon concerns that she might violate her agreement with the state. [Mr. Hollan] indicated to me that if she met with the investigator the state would require her to disclose everything the investigator talked to her about or the state could potentially seek a violation to the agreement she made based upon nondisclosure or inconsistent information. I indicated to her it was not worth the risk and she agreed. So based upon the state[']s assertion my client is not willing to meet with your investigator.” (Docket no. 1571, Exhibit E, Email from Spencer Thomas to Mike Brown, dated Feb 25, 2020).
- ix. Prosecutor Mr. Ryan McBride, on July 10, 2020, sent to Mr. Thomas a letter clarifying that Ms. Henderson could meet with the defense investigators. (Docket no. 1571, Exhibit F).
- x. When Defendant filed a motion to compel Ms. Henderson to meet with defense investigators, Mr. Thomas opposed the motion. (Tr. 33).

xi. Ms. Henderson has chosen not to speak with defense investigators because she does not want to help Defendant. (Tr. 50-52).

b. Conclusions of Law

Defendant argues the State violated the ABA Criminal Justice Standards and Defendant's due process rights by interfering with Henderson's decision to meet with defense investigators.

According to the ABA Criminal Justice Standards, the prosecutor

should not discourage or obstruct communication between witnesses and the defense counsel The prosecutor should not advise any person, or cause any person to be advised, to decline to provide defense counsel with information which such person has a right to give. The prosecutor may, however, fairly and accurately advise witnesses as to the likely consequences of their providing information, but only if done in a manner that does not discourage communication.

Rule 3-3.4(h) (4th ed. 2017).

The right to interview witnesses in a criminal proceeding belongs equally to both the prosecution and defense. *See Kines v. Butterworth*, 669 F.2d 6, 9 (1st Cir. 1981). “[W]hen the free choice of a potential witness to talk to defense counsel is constrained by the prosecution without justification, this constitutes improper interference with the defendant's right of access to the witness.” *Id.*

Mr. Hollan did not advise Ms. Henderson not to meet with the defense investigators or tell Mr. Thomas that she was not allowed to do so. Mr. Hollan's conversation with Mr. Thomas ultimately influenced Henderson's choice not to meet with defense investigators. But that influence was the result of Mr. Hollan fairly and accurately describing how such a meeting might—depending on what Henderson said—violate Henderson's plea agreement. Mr. Thomas evaluated the risk that Ms. Henderson might, in a meeting with defense investigators, violate her

plea agreement. He explained these risks to Ms. Henderson and advised against such a meeting. Ms. Henderson in turn acted on the advice of her counsel.

On these facts, the Court concludes that Mr. Hollan did not “discourage or obstruct communication” between Henderson and defense investigators in violation of Rule 3-3.4(h) of the ABA Criminal Justice Standards. Instead, he “fairly and accurately” described the consequences of such a meeting and did so “in a manner that d[id] not discourage the communication.”

For these reasons, as to Defendant’s fourth claim of prosecutorial misconduct, the Court DENIES Defendant’s request for sanctions.

5. Defendant’s Claim that Mr. Carl Hollan instructed a law enforcement officer to interview James Arnold without first consulting with Arnold’s attorney

a. Findings of Fact

- i. On June 17, 2020, the State filed a Motion to Exclude Evidence related to the Arnold family. (Docket nos. 808, 809).
- ii. On September 18, 2020, the Court directed that counsel be assigned to, among others, witness James Arnold due to potential Fifth Amendment implications at an evidentiary hearing scheduled for October 8, 2020. (Transcript, Hearing on September 18, 2020, Docket no. 1176, 135-37). The transcript of that hearing is an accurate representation of that discussion.
- iii. On September 25, 2020, Detective Pratt interviewed James Arnold via teleconferencing. Mr. Arnold was at the Utah State Prison. Mr. Carl Hollan, a prosecutor then assigned to this case, was physically present in the room with Detective Pratt and consulted with him during the

interview. Ms. Christine Scott and Mr. Ryan McBride, co-counsel with Mr. Hollan, were present remotely.

- iv. Mr. Arnold had previously been represented by Mr. Dana Facemeyer and Mr. Dennis Pawelek in unrelated criminal cases in the Fourth District Court. Prior to the interview with Mr. Arnold, Detective Pratt contacted Mr. Pawelek and Mr. Facemeyer to determine whether either lawyer represented Mr. Arnold. Both lawyers denied representing Mr. Arnold at that time.
- v. No member of the prosecution team contacted the Utah County Public Defenders Association (“the UCPDA”) prior to the interview to inquire whether counsel had been assigned to represent Mr. Arnold at the October 8, 2020 evidentiary hearing or who that counsel would be.
- vi. As of September 25, 2020, the UCPDA had not assigned counsel to represent Mr. Arnold at the evidentiary hearing scheduled for October 8, 2020.
- vii. During the September 25, 2020 interview, Detective Pratt read Mr. Arnold his *Miranda* rights and informed him that he had the right to an attorney. Mr. Arnold waived those rights and spoke with Detective Pratt. (Tr. 88-89).
- viii. On September 30, 2020, the UCPDA contacted Mr. Pawelek about representing Mr. Arnold at the October 8, 2020 hearing. Mr. Pawelek was unable to accept the appointment due to a conflict of interest.

- ix. On September 30, 2020, the UCPDA contacted Mr. Facemeyer about representing Mr. Arnold at the October 8 hearing. Mr. Facemeyer accepted the appointment on October 6, 2020, at 5:48 p.m. Mr. Facemeyer's understanding of the scope of his appointment is accurately set forth in Exhibit 3 to the State's Opposition. (Docket no. 1739, Exhibit 3).
- x. Mr. Arnold has not, individually or through counsel, alleged that theUCAO violated his constitutional right to counsel.

b. Conclusions of Law

Pursuant to Rule 4.2 of the Utah Rules of Professional Responsibility, "[i]n representing a client, a lawyer shall not communicate about the subject of the representation with the person the lawyer knows to be represented by a legal professional in the matter, unless the lawyer has the consent of the legal professional."

Mr. Arnold was not represented by counsel on September 25, 2020, the date Detective Pratt and attorneys with theUCAO interviewed him. One week earlier, the Court ordered that Mr. Arnold be represented by counsel in connection with the evidentiary hearing scheduled for October 8. The UCPDA did not make that appointment until September 30, 2020. Before the interview with Mr. Arnold on September 25, 2020, Detective Pratt contacted the lawyers that had previously represented Mr. Arnold, both whom denied representation at that time. Therefore, Defendant has failed to prove that Mr. Hollan and the other prosecutors communicated with Mr. Arnold about this case at a time when they knew he was represented by legal counsel.

For these reasons, as to Defendant's fifth claim of prosecutorial misconduct, the Court DENIES Defendant's motion for sanctions.

6. **Defendant's Claim that the UCAO contractually obligated itself to present Morgan Henderson's narrative of events despite evidence known to that State that contradicts that narrative**

a. Findings of Fact

i. On October 5, 2018, Morgan Henderson and the State entered into a plea agreement. Exhibit I to Defendant's Motion is an accurate copy of that plea agreement. (Docket no. 1571, Exhibit I).

ii. If Ms. Henderson does not comply with the agreement, she faces a potential prison sentence of 1 to 15 years on each of 10 counts of obstruction of justice (for lying to police) all to run consecutively. (*Id.*)

iii. The agreement contains a narrative of events relating to the murders charged in this case. At the time that Ms. Henderson entered her guilty pleas, she was placed under oath at the State's request and swore that the narrative of events contained in the plea agreement was true.

iv. The plea agreement specifically avers that Ms. Henderson "did not intentionally or knowingly assist Jerrod Baum in the murders of Riley Powell and/or Brelynne Otteson, nor intended that they be killed." (*Id.*).

v. On March 6, 2019, at the preliminary hearing in this case, Ms. Henderson testified consistent with the narrative in her plea agreement.

vi. On May 1, 2020, detective Pratt interviewed Mr. Danny England. Mr. England is the father of Henderson's son. Mr. England told Pratt that (1) Ms. Henderson is known for telling lies and making up stories; and (2) Mr. England was afraid of Ms. Henderson and had worried she might be

capable of killing someone. (Docket no. 1571, Exhibit J, Pratt Supplement #6).

vii. On October 6, 2020, Detective Pratt interviewed Ms. Whitney Henderson, sister to Ms. Henderson. Whitney Henderson told Detective Pratt about Ms. Henderson's propensity for lying and playing the victim. Whitney Henderson said Ms. Henderson had specifically made a comment to her about wanting to kill someone (not otherwise connected to this case) and throw the body in a mineshaft. (Docket no. 1571, Exhibit K, Pratt Supplement # 9 (Oct. 6, 2020)).

viii. On September 25, 2020, Detective Pratt interviewed Mr. James Arnold. Mr. Arnold said that Ms. Henderson had told him that she stabbed Riley Powell. (Docket no. 1571, Exhibit G, Pratt Supplement # 9 (Sept. 30, 2020)).

ix. Ms. Henderson is a key witness in the prosecution of Defendant. The State intends to call Ms. Henderson as a witness and present her testimony at trial.

b. Conclusions of Law

Rule 3.3(b) of the Utah Rules of Professional Conduct provides that

A lawyer shall not offer evidence that the lawyer knows to be false. If a lawyer, . . . or a witness called by the lawyer has offered material evidence and the lawyer comes to know of its falsity, the lawyer shall take reasonable remedial measures, including, if necessary, disclosure to the tribunal. A lawyer may refuse to offer evidence . . . that the lawyer reasonably believes is false.

ABA Criminal Justice Standards 3-1.4(a), (b) requires that a prosecutor "disclose a material fact or facts when necessary . . . to avoid misleading a judge or factfinder."

Defendant argues that because “a plea agreement is ‘essentially a contract’ between a defendant and the State,” *State v. Harper*, 2020 UT App 84, ¶ 24, 466 P.3d 744, 751 (quoting *State v. Francis*, 2017 UT 49, ¶ 11, 424 P.3d 156, 159), the State is contractually bound to present at trial the narrative in Ms. Henderson’s plea agreement, and ignore conflicting evidence suggesting that she did participate in the murders of Riley Powell and Brelynne Otteson. This contractual duty to disregard the falsity of Ms. Henderson’s plea agreement narrative violates the prosecutors’ ethical duty not to present false testimony.

The State argues that while witnesses may have expressed their beliefs about Ms. Henderson’s character and participation in the charged murders, these uncorroborated beliefs do not create a knowledge or reasonable belief that Henderson’s testimony at the time of her plea agreement is false. The State points to physical evidence recovered by police which corroborates Henderson’s narrative. Given this corroborating evidence, prosecutors reasonably believe that Henderson’s narrative of events is true. A jury may evaluate all of the admissible evidence in the case and conclude otherwise, but that does not mean that prosecutors will knowingly offer false testimony by calling Ms. Henderson as a witness at trial.

Defendant has failed to prove that the State is contractually obligated under the plea agreement to ignore evidence that conflicts with Ms. Henderson’s sworn narrative of events. Defendant has failed to prove that the assigned prosecutors intend to knowingly offer false testimony through Ms. Henderson. Almost every criminal case involves conflicting factual evidence and inconsistent statements, and this case is no different. Mr. Arnold, Mr. England, and Ms. Whitney Henderson’s statements to police may undermine the credibility of Ms. Henderson’s plea agreement narrative. But those conflicting statements do not create a knowledge or reasonable belief on the part of prosecutors that Ms. Henderson’s sworn narrative

is false. Should such a knowledge or reasonable belief arise, the ethical duty to not knowingly offer false testimony may be implicated. But Defendant has failed to prove that such a knowledge or reasonable belief exists.

For these reasons, as to Defendant's sixth claim of prosecutorial misconduct, the Court DENIES Defendant's motion for sanctions.

7. Defendant's Claim that Mr. Carl Hollan authorized filing of a search warrant application that omitted facts known to him at the time

a. Findings of Fact

- i. On May 14, 2019, Detective Pratt applied for a search warrant authorizing police to search the Defendant's residence. Mr. Carl Hollan, a prosecutor then assigned to this case, reviewed the warrant application and approved it. Exhibit L to Defendant's motion is an accurate copy of the application, search warrant, and return on the warrant. (Docket no. 1571, Exhibit L).
- ii. On May 15, 2019, UCSO served the search warrant at Defendant's residence. While serving the warrant, officers located what appeared to be burnt clothing on the side of a hill. The clothing was taken into evidence.
- iii. On the date the warrant was served, there was no cell service at the Defendant's residence.
- iv. That evening, after returning to Utah County, Detective Pratt submitted another search warrant application authorizing police to seize the items of burnt clothing already in police custody. Mr. Hollan reviewed and approved this warrant application. Exhibit N to Defendant's motion is an accurate copy of the second application, search warrant, and return. (Docket no. 1571, Exhibit N).

- v. Mr. Hollan knew that the things to be seized in the second search warrant application had already been seized by the police. (Tr. 122). The Affidavit in support of the second search warrant did not disclose this fact. (Docket no. 1571, Exhibit N).
- vi. The second search warrant issued, but a second search of Defendant's residence to recover the burnt clothing was not conducted.
- vii. Returns on both warrants were filed on May 16, 2019. The return for the May 14 warrant did not include the item of burnt clothing, but the return for the May 15 warrant did. The parties stipulate that the returns for each warrant (contained in Docket no 1571, Exhibits L, N) are authentic.

b. Conclusions of Law

Pursuant to Rule 3.3(e) of the Utah Rules of Professional Conduct, “[i]n an ex parte proceeding, a lawyer shall inform the tribunal of all material facts known to the lawyer that will enable the tribunal to make an informed decision, whether or not the facts are adverse.”

Defendant argues that Mr. Hollan failed to disclose a material fact in the second warrant application—the fact that police had already seized the burnt clothing that was the subject of the search warrant. The State argues that disclosing this fact would have improperly influenced the magistrate's decision on the warrant application.

In ex parte proceedings, lawyers have an ethical duty to inform the tribunal of material facts known to the lawyer that will enable the tribunal to make an informed decision, even when those facts are adverse to the lawyer's case. Here, the fact that the police had already seized the burnt clothing was material to the second warrant application, but only in the sense that it disclosed a more complete picture of what had actually occurred during service of the first

warrant and what would actually happen upon issuance of the second warrant. But the fact that the police had already seized the burnt clothing was immaterial to whether or not probable cause existed for that seizure. Prior seizure of the clothing was simply not a fact which would have enabled the reviewing magistrate to make an informed decision about whether the second warrant application should be granted or not. Therefore, Mr. Hollan's approval of the second warrant application did not violate Rule 3.3.

For these reasons, as to Defendant's seventh claim for prosecutorial misconduct, the Court DENIES Defendant's motion for sanctions.

8. Defendant's Claim that UCAO has failed to search for potentially exculpatory evidence; namely, the identities of Morgan Henderson's mental health care providers and the records held by those providers

a. Findings of Fact

- i. On June 26, 2020, the Court ruled on the scope of Morgan Henderson's waiver of privilege with respect to her mental health records. (Docket no. 828).
- ii. On May 26, 2020, Detective Pratt interviewed Ms. Henderson about defense subpoenas for mental health records. Ms. Henderson told Detective Pratt that the defense was "missing a couple of big ones." Detective Pratt did not ask Ms. Henderson to clarify what she meant. This interview was disclosed to defense counsel on January 14, 2021.
- iii. Exhibit O to Defendant's motion is an accurate copy of the email correspondence relative to the defense's request for these additional records, Ms. Henderson's response, and the State's response. (Docket no. 1571, Exhibit O).

- iv. On February 8, 2021, counsel for Defendant demanded that the State use its authority under the plea agreement to compel Ms. Henderson to disclose her mental health care providers not yet known to the Defendant. (*Id.*).
- v. On February 11, 2021, Mr. Ryan McBride, counsel for the State, replied: “[W]e do not intend to obtain and provide this information. We believe it is protected material and in light of Ms. Henderson’s privilege, we cannot compel her to provide the names of providers or records.” (*Id.*)

b. Conclusions of Law

Rule 3.8(d) of the Utah Rules of Professional Conduct requires that a “prosecutor in a criminal case . . . [m]ake timely disclosure to the defense of all evidence or information known to the prosecutor that tends to negate the guilt of the accused or mitigates the offense . . . except when the prosecutor is relieved of this responsibility by a protective order of the tribunal.”

Defendant argues that Henderson’s mental health records may contain exculpatory impeachment evidence. Since the date of Detective Pratt’s interview with Ms. Henderson about the defense subpoenas for her mental health records, the State has known that the disclosed list of Ms. Henderson’s mental health care providers is incomplete. Therefore, theUCAO has a duty under Rule 3.8 to identify and disclose the identity of these unknown providers, whether by subpoena or by use of its authority under Ms. Henderson’s plea agreement.

In response, the State argues that it has never concealed the fact that the defense subpoenas for mental health records may be incomplete. Rather, the State disclosed the entire interview between Ms. Henderson and Detective Pratt. Moreover, the State has no duty to subpoena or otherwise procure the “missing” mental health records referred to by Henderson.

The question presented here is whether the prosecutor has a duty to search for exculpatory evidence that may be contained in mental health records possessed by a third party. The Utah Supreme Court recently addressed this question of duty in *State v. Newton*, 2020 UT 24, 466 P.3d 135. There, the Court held:

Under the first prong of the *Brady* analysis, a prosecutor must “disclose *known*, favorable evidence rising to a material level of importance.” *Kyles v. Whitley*, 514 U.S. 419, 438 (1995) (emphasis added). This, in turn, requires a prosecutor to “learn of any favorable evidence *known* to the others acting on the government's behalf in the case, including the police.” *Id.* at 437 (emphasis added). But a prosecutor generally has no duty “to search for exculpatory evidence, conduct tests, or exhaustively pursue every angle on a case.” *State v. Shaffer*, 725 P.2d 1301, 1305–06 (Utah 1986) (citation omitted) (holding that the cremation of the victim's body before gunshot-residue tests were performed was not a *Brady* violation when “evidence of gunshot residue offered a ‘mere possibility’ of evidence favorable to the defendant”). Such duty arises under *Brady* only when “the exculpatory value of untested ... evidence” is “apparent.” *State v. Bakalov*, 1999 UT 45, ¶¶ 49–50, 979 P.2d 799 (holding that there was no *Brady* violation when the State did not test a semen sample); *see also Arizona v. Youngblood*, 488 U.S. 51, 56–58 (1988) (holding that the police's failure to perform tests on semen samples did not violate the Due Process Clause, absent bad faith); *People ex rel. Gallagher v. Dist. Court In & For Arapahoe Cty.*, 656 P.2d 1287, 1291–92 (Colo. 1983) (holding that the police's failure to conduct a trace-metal test on victim's hands before burial was a suppression of evidence when it was “implausible” that the “test had no value”).

Newton, 2020 UT 24, ¶ 39 (internal parallel United States Supreme Court citations and footnote omitted).

Defendant has failed to prove that the “missing” mental health care providers constitute evidence “known to the prosecutor that tends to negate the guilt of the accused or mitigates the offense.” And Defendant has failed to prove that the exculpatory value of these missing records is “apparent.” The mere possibility that the records may contain exculpatory evidence does not give rise to a legal duty on the part of the prosecutor to go in search of the records. The State

disclosed Ms. Henderson's belief that the defense subpoenas for her mental health records may be incomplete and it has no legal duty under *Brady* or Rule 3.8 to do more.

For these reasons, as to Defendant's eighth claim for prosecutorial misconduct, the Court DENIES Defendant's motion for sanctions.

ORDER

For the foregoing reasons, the Court GRANTS IN PART and DENIES IN PART Defendant's Motion for Sanctions Re: Prosecutorial Misconduct. This is the Order of the Court for the matters addressed herein. No further Order is necessary.

DATED this 10th day of January, 2022.

/s/ *Derek P. Pullan*



JUDGE DEREK P. PULLAN
Fourth District Court